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Matter of The Patrick Family 1992 Revocable Trust (G)

26-21326

PETITION FOR APPROVAL OF TWENTY-THIRD ACCOUNT AND REPORT OF TRUSTEE AND FOR TRUSTEE FEES

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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In The Matter of Irrevocable Trust Agreement
dated December 28, 1976 fbo Meredith Mateo and
Irrevocable Trust Agreement dated December 29, 1976
Fbo Meredith Mateo

26PR000122

PETITION FOR INSTRUCTIONS TO COMBINE SIMILAR TRUSTS

TENTATIVE RULING: Good cause appearing, and no opposition being on file, the Petition is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Monica Regalado et al v. American Honda Motor Co., Inc.

22CV001602

[1] DEFENDANT’S MOTION TO COMPEL PRODUCTION OF PLAINTIFF’ S VEHICLE FOR INSPECTION

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant American Honda Motor Co., Inc. (AHM) moves, pursuant to Code of Civil Procedure sections 2031.310 and 2023.010, for an order compelling Plaintiff to produce the subject vehicle for inspection.

There appears to be no dispute regarding the following. AHM noticed an inspection of the subject vehicle for a unilaterally chosen date and location. Plaintiffs objected to the date of

the inspection, and asserted various other objections regarding the scope and representations of non-destructive testing. Plaintiff offered to meet and confer to select a mutually satisfactory date for the inspection.

AHM contends that Plaintiffs have not met and conferred. (See, *e.g.*, Declaration of Adam Knighton at ¶ 7; see also Support Memo at 3:18-21.) Of note, however, AHM presents *no* evidence that AHM has made efforts at meeting and conferring.

In this context, Plaintiff presents evidence that, on the date that it filed its Opposition, “an email was sent to opposing counsel offering July 29, 2026, July 30, 2026, and July 31, 2026, for the completion of the Vehicle Inspection.”¹ As such, Plaintiff is not, as AHM contends, refusing to produce the subject vehicle. (See, *e.g.*, 4:24.)

The Court notes the apparent lack of genuine effort among counsel to meet and confer to resolve this discovery dispute prior to resorting to motion practice. “‘It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) . . . that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) The Court expects that, as part of any future discovery motion, counsel will produce evidence reflecting a genuine and fulsome effort at resolving the dispute through meet and confer.

As there appears to be no dispute, the Motion is GRANTED. Plaintiff is ordered to produce the subject vehicle for inspection no later than July 31, 2026.

[2] DEFENDANT AMERICAN HONDA MOTOR CO., INC. MOTION TO COMPEL THE DEPOSITION AND ACCOMPANYING DOCUMENT PRODUCTION OF PLAINTIFF MARIA REGALADO

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant American Honda Motor Co., Inc. (AHM) moves, pursuant to Code of Civil Procedure sections 2025.450, for an order to Compel the Deposition of Plaintiff Maria Regalado.

¹ Plaintiff also notes, through its Opposition that “[t]o date, counsel for Defendant has not responded.” This is unsurprising given that Plaintiff’s Opposition was filed on the same day that the email meet and confer was communicated to AHM.

AHM presents evidence that, on December 3, 2025, it noticed Maria Regalado's deposition for March 3, 2026. (See Declaration of Adam Knighton at ¶ 5.) AHM also presents evidence that Ms. Regalado did not object to the Notice. (See *id.* at ¶ 6.) Plaintiffs do not suggest that any objection was served and concede that Maria Regalado simply did not appear at the noticed deposition. (See Opposition at 2:3-7.)

Plaintiffs contend that the Motion should be denied because AHM failed to adequately meet and confer.

"If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination . . . or to produce for inspection any document . . . the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).) However, any such motion "shall . . . (1) . . . set forth specific facts showing good cause justifying the production for inspection of any document . . . [and] . . . (2) . . . by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b).)

The instant Motion complies with neither of the two requirements of the statute.

Plaintiff's counsel represents that "On or about July 8, 2026, counsel for Plaintiff emailed counsel for Defendant offering July 17, 2026, and July 24, 2026, for Plaintiff Monica Regalado's deposition, as Plaintiff was available on those dates. [Citation.] At the time of filing this Opposition, Defendant has not responded to Plaintiff's email. [Citation.]" (Declaration of Lara Abdo at ¶ 8.) July 8, 2026, however, was the date that the Opposition was filed. As such, there was no time for AHM to respond prior to Plaintiff's Opposition being filed. In this context, Plaintiff's representation that "Defendant has not responded," is misleading.

The Court notes the apparent lack of genuine effort among counsel to meet and confer to resolve this discovery dispute prior to resorting to motion practice. "'It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) . . . that civil discovery be essentially self-executing. [Citation.]' [Citation.] A self-executing discovery system is 'one that operates without judicial involvement.' [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]" (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) The Court expects that, as part of any future discovery motion, counsel will produce evidence reflecting a genuine and fulsome effort at resolving the dispute through meet and confer.

Because AHM failed to satisfy the requirements of Code of Civil Procedure section 425.450, subdivision (b), the Motion is DENIED. However, the Court expects Plaintiff to follow through on the offer to appear for deposition and to produce documents. As such, this ruling is made without prejudice to AHM renewing its efforts to compel such deposition and production if issues arise after genuine and fulsome efforts at meeting and conferring.

[3] DEFENDANT AMERICAN HONDA MOTOR CO., INC. MOTION TO COMPEL THE DEPOSITION AND ACCOMPANYING DOCUMENT PRODUCTION OF PLAINTIFF MONICA REGALADO

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant American Honda Motor Co., Inc. (AHM) moves, pursuant to Code of Civil Procedure sections 2025.450, for an order to Compel the Deposition of Plaintiff Monica Regalado.

AHM presents evidence that, on December 3, 2025, it noticed Monica Regalado's deposition for March 3, 2026. (See Declaration of Adam Knighton at ¶ 5.) AHM also presents evidence that Ms. Regalado did not object to the Notice. (See *id.* at ¶ 6.) Plaintiffs do not suggest that any objection was served and concede that Monica Regalado simply did not appear at the noticed deposition. (See Opposition at 2:3-7.)

Plaintiffs contend that the Motion should be denied because AHM failed to adequately meet and confer.

"If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination . . . or to produce for inspection any document . . . the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).) However, any such motion "shall . . . (1) . . . set forth specific facts showing good cause justifying the production for inspection of any document . . . [and] . . . (2) . . . by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b).)

The instant Motion complies with neither of the two requirements of the statute.

Plaintiff's counsel represents that "On or about July 8, 2026, counsel for Plaintiff emailed counsel for Defendant offering July 17, 2026, and July 24, 2026, for Plaintiff Monica Regalado's deposition, as Plaintiff was available on those dates. [Citation.] At the time of filing this Opposition, Defendant has not responded to Plaintiff's email. [Citation.]" (Declaration of Lara Abdo at ¶ 8.) July 8, 2026, however, was the date that the Opposition was filed. As such, there

was no time for AHM to respond prior to Plaintiff's Opposition being filed. In this context, Plaintiff's representation that "Defendant has not responded," is misleading.

The Court notes the apparent lack of genuine effort among counsel to meet and confer to resolve this discovery dispute prior to resorting to motion practice. "It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) . . . that civil discovery be essentially self-executing. [Citation.]' [Citation.] A self-executing discovery system is 'one that operates without judicial involvement.' [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]" (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) The Court expects that, as part of any future discovery motion, counsel will produce evidence reflecting a genuine and fulsome effort at resolving the dispute through meet and confer.

Because AHM failed to satisfy the requirements of Code of Civil Procedure section 425.450, subdivision (b), the Motion is DENIED. However, the Court expects Plaintiff to follow through on the offer to appear for deposition and to produce documents. As such, this ruling is made without prejudice to AHM renewing its efforts to compel such deposition and production if issues arise after genuine and fulsome efforts at meeting and conferring.

****at 9:30 a.m.****

Ryan Robles v. Barry Callebaut USA, LLC

25CV000606

**PLAINTIFF'S MOTION FOR PRELIMINARY APPROVAL OF CLASS AND
REPRESENTATIVE ACTION SETTLEMENT**

TENTATIVE RULING: The matter is CONTINUED to August 25, 2026, at 8:30 a.m. in Dept. A to allow the moving party to provide sufficient notice of the motion. The Proof of Service on file indicates service by mail on June 29, 2026, which is only 15 court days prior to the hearing and therefore insufficient. (Code Civ. Proc., § 1005, subd. (b).) Because Defendant has not waived the defect in service, either expressly, or by filing substantive oppositions or non-oppositions to the motion, the Court is without jurisdiction to hear it. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 ["The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].)

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Marilyn Louise Quint

23PR000119

STATUS HEARING RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. There is no new Status Report on file. Petitioner is therefore directed to appear and update the Court on the status of the case.